

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1628

By: Sneed

AS INTRODUCED

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 1151.2a, which relates to the Construction Industries Board; authorizing the Construction Industries Board to administer and enforce residential roofer endorsement provisions; amending 59 O.S. 2021, Section 1151.5, which relates to roofing contractor registration; modifying various requirements to obtain a roofing contractor license; amending 59 O.S. 2021, Section 1151.8, which relates to registration fees; modifying registration fees; establishing the residential roofer endorsement examination; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1151.2a, is amended to read as follows:

Section 1151.2a. A. The Construction Industries Board is authorized to administer and enforce the Roofing Contractor Registration Act.

B. 1. The Construction Industries Board is authorized to administer and enforce the commercial roofer endorsement provisions of the Roofing Contractor Registration Act.

1        2. The Construction Industries Board shall have the authority  
2 to administer and enforce the provisions of the commercial roofer  
3 endorsement provisions of the Roofing Contractor Registration Act,  
4 including the authority to:

- 5            a. establish the examination and continuing education  
6                    requirements and procedures for endorsements of  
7                    persons desiring or intending to engage in the  
8                    business or trade of a commercial roofing contractor  
9                    with the advice and input from the Committee of  
10                   Roofing Examiners using assistance from a third-party  
11                   vendor as necessary and appropriate,
- 12           b. establish and enforce the minimum standards of  
13                   commercial roofer endorsements in this state and rules  
14                   promulgated pursuant to the commercial roofer  
15                   endorsement provisions of the Roofing Contractor  
16                   Registration Act with the advice and input from the  
17                   Committee of Roofing Examiners,
- 18           c. promulgate, prescribe, amend, and repeal rules  
19                   necessary to implement the provisions of the  
20                   commercial roofer endorsement of the Roofing  
21                   Contractor Registration Act with the advice and input  
22                   from the Committee of Roofing Examiners,
- 23           d. issue, renew, suspend, revoke, modify or deny  
24                   endorsements to engage in commercial roofing

1 contractor work pursuant to the Roofing Contractor  
2 Registration Act,

3 e. conduct investigations for the purpose of inspecting  
4 commercial roofer endorsements for compliance with the  
5 commercial roofer endorsement provisions of the  
6 Roofing Contractor Registration Act, and of the rules  
7 of the Board promulgated pursuant thereto, into the  
8 qualifications of applicants and allegations of  
9 violations,

10 f. establish and levy administrative fines against any  
11 person who violates any of the provisions of the  
12 commercial roofer endorsement standards of the Roofing  
13 Contractor Registration Act or any rule promulgated  
14 pursuant thereto, not to exceed five percent (5%) of  
15 the commercial job. For any residential job on a  
16 first violation the Board may issue a warning; on any  
17 second violation levy and administrative fine not to  
18 exceed Five Hundred Dollars (\$500.00); on a third  
19 violation, levy an administrative fine not to exceed  
20 Three Thousand Five Hundred Dollars (\$3,500.00); and  
21 for any subsequent violation, revoke the registration  
22 and commercial roofer endorsement,

23 g. initiate disciplinary proceedings and provide hearings  
24 on any person who violates any of the provisions of

1 the commercial roofer endorsement standards of the  
2 Roofing Contractor Registration Act or any rule  
3 promulgated pursuant thereto,

4 h. request prosecution of and initiate injunctive  
5 proceedings against any person who violates any of the  
6 provisions of the commercial roofers endorsement in  
7 the Roofing Contractor Registration Act or any rule  
8 promulgated pursuant to the commercial roofer  
9 endorsement of the Roofing Contractor Registration  
10 Act, and

11 i. exercise all incidental powers as necessary and proper  
12 to implement and enforce the provisions of the  
13 commercial roofer endorsement of the Roofing  
14 Contractor Registration Act and the rules promulgated  
15 pursuant thereto.

16 C. 1. The Construction Industries Board is authorized to  
17 administer and enforce the residential roofer endorsement provisions  
18 of the Roofing Contractor Registration Act.

19 2. The Construction Industries Board shall have the authority  
20 to administer and enforce the provisions of the residential roofer  
21 endorsement provisions of the Roofing Contractor Registration Act,  
22 including the authority to:

23 a. establish the examination and continuing education  
24 requirements and procedures for endorsements of

1 persons desiring or intending to engage in the  
2 business or trade of a residential roofing contractor  
3 with the advice and input from the Committee of  
4 Roofing Examiners using assistance from a third-party  
5 vendor as necessary and appropriate,

6 b. establish and enforce the minimum standards of  
7 residential roofer endorsements in this state and  
8 rules promulgated pursuant to the residential roofer  
9 endorsement provisions of the Roofing Contractor  
10 Registration Act with the advice and input from the  
11 Committee of Roofing Examiners,

12 c. promulgate, prescribe, amend, and repeal rules  
13 necessary to implement the provisions of the  
14 residential roofer endorsement of the Roofing  
15 Contractor Registration Act with the advice and input  
16 from the Committee of Roofing Examiners,

17 d. issue, renew, suspend, revoke, modify, or deny  
18 endorsements to engage in residential roofing  
19 contractor work pursuant to the Roofing Contractor  
20 Registration Act,

21 e. conduct investigations for the purpose of inspecting  
22 residential roofer endorsements for compliance with  
23 the commercial roofer endorsement provisions of the  
24 Roofing Contractor Registration Act, and of the rules

1 of the Board promulgated pursuant thereto, into the  
2 qualifications of applicants and allegations of  
3 violations,

4 f. establish and levy administrative fines against any  
5 person who violates any of the provisions of the  
6 residential roofer endorsement standards of the  
7 Roofing Contractor Registration Act or any rule  
8 promulgated pursuant thereto. For any residential  
9 job, on a first violation, the Board may issue a  
10 warning; on any second violation, levy an  
11 administrative fine not to exceed Five Hundred Dollars  
12 (\$500.00); on a third violation, levy an  
13 administrative fine not to exceed Three Thousand Five  
14 Hundred Dollars (\$3,500.00); and for any subsequent  
15 violation, revoke the registration and residential  
16 roofer endorsement,

17 g. initiate disciplinary proceedings and provide hearings  
18 on any person who violates any of the provisions of  
19 the residential roofer endorsement standards of the  
20 Roofing Contractor Registration Act or any rule  
21 promulgated pursuant thereto,

22 h. request prosecution of and initiate injunctive  
23 proceedings against any person who violates any of the  
24 provisions of the residential roofers endorsement in

1           the Roofing Contractor Registration Act or any rule  
2           promulgated pursuant to the residential roofer  
3           endorsement of the Roofing Contractor Registration  
4           Act, and

5           i. exercise all incidental powers as necessary and proper  
6           to implement and enforce the provisions of the  
7           residential roofer endorsement of the Roofing  
8           Contractor Registration Act and the rules promulgated  
9           pursuant thereto.

10       SECTION 2.       AMENDATORY       59 O.S. 2021, Section 1151.5, is  
11 amended to read as follows:

12       Section 1151.5. A. Applications for registration shall be made  
13 to the Construction Industries Board in writing on forms approved  
14 and provided by the Board and shall be accompanied by the proper  
15 fee.

16       B. An applicant or qualifying party whose registration is  
17 denied, or the person has a conviction, or pled guilty or nolo  
18 contendere to a misdemeanor, or otherwise fails to meet the  
19 requirements of application, may obtain a hearing before the  
20 Committee of Roofing Examiners in order to provide information in  
21 support of the application requirements and any other information  
22 showing the applicant's ability and willingness to comply with the  
23 requirements of the Roofing Contractor Registration Act, and to  
24 protect the public health, safety and welfare.

1 C. To obtain a roofing contractor registration under the  
2 Roofing Contractor Registration Act, a qualifying party who is  
3 eighteen (18) years of age or older shall submit, on forms the  
4 registrar prescribes:

5 1. An application under oath containing a statement:

- 6 a. of the qualifying party's experience and  
7 qualifications as a roofing contractor, if any,
- 8 b. that the qualifying party desires the issuance of a  
9 roofing contractor registration certificate,
- 10 c. that the qualifying party has read the Roofing  
11 Contractor Registration Act and will comply with the  
12 provisions of the Roofing Contractor Registration Act  
13 and rules,
- 14 d. that the qualifying party will comply with state laws  
15 and local ordinances relating to standards and  
16 permits,
- 17 e. that the qualifying party has or has not been  
18 registered or licensed as a roofing contractor in  
19 another state and whether any disciplinary action has  
20 been taken against such registration or license and  
21 whether it is currently in good standing, and
- 22 f. that the nonresident qualifying party appoints the  
23 Secretary of State as legal service agent for all  
24 lawful process to be served upon the applicant for



1 work performed in this state or as otherwise provided  
2 in the Roofing Contractor Registration Act;

3 2. The qualifying party's name, physical address and proof  
4 thereof, business name, telephone number, address and place of  
5 incorporation, if different, information on any other person who  
6 will be authorized to act as the business entity, and the  
7 applicant's ~~phone~~ telephone number, if different;

8 3. The entity's federal tax ID number, or the employer's or  
9 owner's or qualifying party's ~~social security~~ Social Security  
10 number, and the employer's account number assigned by the Oklahoma  
11 Employment Security Commission. The ~~social security~~ Social Security  
12 number information shall remain with the registrar as confidential  
13 and privileged except for necessary disclosures to state agencies to  
14 verify compliance with requirements with this act, or upon request  
15 by law enforcement; and

16 4. A copy of the roofing contractor's certificate of liability  
17 insurance shall be filed with the application and shall be not less  
18 than Five Hundred Thousand Dollars (\$500,000.00) for residential  
19 roofing contractor work and shall not be less than One Million  
20 Dollars (\$1,000,000.00) for commercial roofing contractor work.  
21 Additionally, the Construction Industry Board and the Oklahoma  
22 Roofing Contractors Association must be listed as a certificate  
23 holder. Any insurance company issuing a liability policy to a  
24 roofing contractor pursuant to the provisions of the Roofing

1 Contractor Registration Act shall be required to notify the  
2 Construction Industries Board in the event such liability policy is  
3 cancelled for any reason or lapses for nonpayment of premiums. All  
4 registrations granted under the Roofing Contractor Registration Act  
5 shall be suspended on the date of the policy cancellation. The  
6 registrar must receive proof of insurance prior to restoring the  
7 registration.

8 In addition, the roofing contractor shall submit proof that the  
9 contractor has secured workers' compensation coverage satisfactory  
10 under the Workers' Compensation Act, or an affidavit of exemption or  
11 self-insurance as authorized pursuant to the Workers' Compensation  
12 Act. If the registrar deems it appropriate or necessary, the  
13 registrar may also require other information to be included on the  
14 application form to assist the registrar in registering the person  
15 as a contractor.

16 D. The qualifying party applying for a commercial roofer  
17 endorsement must provide information on the legal entity, including  
18 but not limited to the articles, organizational agreements or  
19 documents establishing the legal entity, including a list of the  
20 officers, members, managers, partners, or other managing agents of  
21 the legal entity. The qualifying party shall also provide a  
22 certificate of good standing or a trade name report from the Office  
23 of the Secretary of State.

24

1 E. The registrar shall refuse to register any person if the  
2 registrar determines:

3 1. The application contains false, misleading, or incomplete  
4 information;

5 2. The applicant fails to provide a certificate of good  
6 standing or a trade name report from the Office of the Secretary of  
7 State;

8 3. The applicant, qualifying party, or any member of the legal  
9 entity fails or refuses to provide any information requested by the  
10 registrar;

11 4. The applicant fails or refuses to pay the required fees;

12 5. The applicant, qualifying party, or owner or officer or  
13 managing member of the legal entity is ineligible for registration  
14 due to a suspended or revoked registration in this state;

15 6. The nonresident applicant has a revoked or suspended  
16 registration or license required by law for roofing contractors in  
17 another state; or

18 7. The applicant, qualifying party, or legal entity has failed  
19 or refuses to submit any taxes due in this state.

20 F. The registrar shall notify the applicant in writing if the  
21 registrar denies a registration or renewal certificate, and shall  
22 provide the applicant an opportunity to respond to or cure any  
23 defect in the written application or renewal for a period of ten  
24 (10) days from the date of the written notification. An applicant

1 aggrieved by a decision of the registrar denying a registration or  
2 renewal may appeal the decision as provided in the Roofing  
3 Contractor Registration Act, the Construction Industries Board Act,  
4 or the Administrative Procedures Act, or the applicant may reapply  
5 after a ninety-day waiting period, if otherwise eligible under the  
6 provisions of the Roofing Contractor Registration Act. The  
7 application and renewal fees shall not be refundable.

8 G. The registrar shall classify as not in good standing the  
9 registration of any roofing contractor who fails to:

10 1. Maintain liability insurance coverage;

11 2. Maintain workers' compensation coverage satisfactory under  
12 the Workers' Compensation Act, or provide an affidavit of exemption  
13 or self-insurance as authorized pursuant to the Workers'  
14 Compensation Act;

15 3. File, renew, or properly amend any fictitious name  
16 certificate;

17 4. Maintain an active status of a corporation or registration  
18 as a foreign corporation, a limited liability company or  
19 registration as a foreign limited liability company, a limited  
20 liability partnership registration or foreign limited liability  
21 partnership registration, or a limited partnership certificate or  
22 limited partnership or foreign limited partnership certificate of  
23 authority, with the Office of the Secretary of State;

24 5. File or renew a trade name registration;

1       6. Maintain or renew a roofing contractor registration as  
2 provided in the Roofing Contractor Registration Act;

3       7. Notify the registrar of a change in name, address, legal  
4 business entity, qualifying party, legal service agent, or  
5 adjudication by a court of competent jurisdiction for any act or  
6 omission specified in subsection A of Section 1151.14 of this title  
7 or a violation of the Roofing Contractor Registration Act;

8       8. Maintain a registration as required by law in another state  
9 while registered in this state as a nonresident roofing contractor;  
10 or

11       9. File and pay all taxes of the qualifying party and legal  
12 entity when due in this state.

13       H. The registrar shall send a written notice to the qualifying  
14 party when his or her registration is not in good standing.

15       I. Any roofing contractor who has been notified by the  
16 registrar that his or her registration is not in good standing shall  
17 cease soliciting or entering new roofing services and projects as of  
18 the date of such notification; however, the roofing contractor shall  
19 be allowed to complete roofing projects where actual physical work  
20 has begun prior to the date of issuance of the notice that his or  
21 her registration is not in good standing. The roofing contractor  
22 must disclose the change in standing to any homeowner or other  
23 person who has an interest in any job covered under the Roofing  
24 Contractor Registration Act. Upon notice of a change in standing,

1 the homeowner shall have the option to cancel the contract. The  
2 roofing contractor will be owed the actual cost incurred for  
3 materials and the market value of labor already incurred on the job.  
4 The roofing contractor must obtain an updated authorization from the  
5 homeowner and other parties of interest if there is an agreement to  
6 continue the job as originally negotiated. If the roofing  
7 contractor fails to correct the deficiency specified in the notice  
8 by evidence satisfactory to the registrar within thirty (30) days of  
9 the date of the notice, or if the roofing contractor solicits or  
10 enters into new roofing services contracts or projects while the  
11 roofing contractor's registration is not in good standing, or while  
12 such registration is suspended or revoked, the roofing contractor  
13 shall be in violation of the provisions of the Roofing Contractor  
14 Registration Act.

15 J. Any registration that remains not in good standing for a  
16 sixty-day period shall be suspended on the sixtieth day from the  
17 date of issuance of the notice to the roofing contractor that his or  
18 her registration is not in good standing. Any registration that  
19 remains not in good standing, and is suspended for such cause, shall  
20 be revoked on the ninetieth day from the date of issuance of the  
21 notice to the roofing contractor that his or her registration is not  
22 in good standing. The registrar shall notify the roofing contractor  
23 upon suspension or revocation of his or her registration for failure  
24 to comply in bringing such registration into good standing as

1 required by law. The roofing contractor may reinstate his or her  
2 registration to good standing by paying the required fees provided  
3 in Section 1151.12 of this title and complying with all other  
4 requirements for issuance of a registration in good standing.

5 K. Any registrant, qualifying party, or roofing company owner  
6 aggrieved by the decision of the registrar to suspend or revoke a  
7 registration pursuant to this section may appeal such decision as  
8 provided in this act or the Administrative Procedures Act.

9 L. For any suspended license, the contractor's registration  
10 number will be null and void and the contractor will be required to  
11 submit a new application that meets the requirements under this act.

12 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1151.8, is  
13 amended to read as follows:

14 Section 1151.8. A. At the time of making application for a  
15 roofing contractor registration certificate pursuant to the Roofing  
16 Contractor Registration Act, the applicant shall pay to the  
17 registrar a fee of ~~Seventy-five Dollars (\$75.00)~~ Five Hundred  
18 Dollars (\$500.00) for the ~~annual~~ initial registration certificate.

19 B. All monies collected by the registrar for roofing contractor  
20 registration applications, renewals and other fee assessments shall  
21 be deposited by the registrar and credited to the Roofing Contractor  
22 Registration Revolving Fund and such funds shall be used by the  
23 registrar to implement and administer the provisions of the Roofing  
24 Contractor Registration Act.

1 C. The fee to be submitted with an application for a roofing  
2 contractor registration may be prorated as set by the provisions of  
3 the Roofing Contractor Registration Act or rules. Unless prorated  
4 at the time of initial registration, fees for initial registration  
5 shall be paid in the amount stated in subsection A of this section  
6 and such registration certificates shall expire each year on the  
7 last day of the birth month of the qualifying party. Renewals will  
8 be prorated as provided in Section 1151.3 of this title.

9 D. A renewal fee for a roofing contractor registration shall be  
10 ~~Seventy-five Dollars (\$75.00)~~ Two Hundred Fifty Dollars (\$250.00)  
11 for the annual renewal registration certificate.

12 E. A lapsed or expired roofing contractor registration shall  
13 result in a Five-Hundred-Dollar (\$500.00) reinstatement fee.

14 SECTION 4. NEW LAW A new section of law to be codified  
15 in the Oklahoma Statutes as Section 1151.25a of Title 59, unless  
16 there is created a duplication in numbering, reads as follows:

17 A. Except as otherwise provided in the Roofing Contractor  
18 Registration Act, on and after November 1, 2025, every roofing  
19 contractor offering to engage in or engaging in performing  
20 residential roofing contractor work in this state shall be required  
21 to receive a residential roofing endorsement. To receive a  
22 residential roofing endorsement the roofing contractor shall be  
23 required to take and successfully pass a residential roofing  
24 examination approved under the provisions of this act, and be in



1 compliance with all other provisions of the act and rules thereof  
2 before acting or being endorsed as a residential roofing contractor.  
3 For applicants who have been registered and in good standing with  
4 the Construction Industries Board since November 1, 2022, there will  
5 be a twelve-month grandfathering-in period from November 1, 2025, to  
6 either pass the exam or complete an additional ten (10) hours of  
7 continuing education credits to be granted a residential roofer  
8 endorsement.

9       B. Examinations for a residential roofer endorsement shall be  
10 uniform and practical in nature and sufficiently strict to test the  
11 qualifications and fitness of the applicants for endorsement.  
12 Examinations shall be in whole or in part in writing. Examinations  
13 shall be offered at least monthly; dates, times, and locations are  
14 to be determined by the registrar or third-party vendor with  
15 approval of the registrar.

16       C. Any applicant initially failing to pass the examination  
17 shall not be permitted to take another examination for a period of  
18 thirty (30) days. Any applicant subsequently failing to pass the  
19 examination shall not be permitted to take another examination for a  
20 period of ninety (90) days. However, in a declared state of  
21 emergency, the examination shall be available as often as possible  
22 as determined by the registrar.

23       D. No residential roofer endorsement shall be renewed unless  
24 the qualifying party has completed the required hours of continuing

1 education, as determined and approved by the Committee of Roofing  
2 Examiners and the Construction Industries Board.

3 E. For all new applicants not registered and in good standing  
4 with the Construction Industries Board prior to November 1, 2025,  
5 the Construction Industries Board will issue a residential roofer  
6 endorsement to qualifying applicants no sooner than thirty (30) days  
7 from the date of the application. New applicants shall not be  
8 allowed to sell, offer, bid, inspect or perform any residential  
9 roofing contractor work in this state until a residential roofer  
10 endorsement is issued.

11 F. For all applicants registered and in good standing with the  
12 Construction Industries Board prior to November 1, 2025:

13 1. The residential roofer endorsement shall be issued  
14 immediately upon compliance with the provisions of this section; and

15 2. Shall be allowed to continue residential roofing contractor  
16 work at all times during the residential roofer endorsement  
17 application process.

18 SECTION 5. This act shall become effective November 1, 2025.  
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